

the amount of \$10,800, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$5,886.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,914.

Plaintiff to file order on Motion, as well as submit Judgment.

3. 9:00 AM CASE NUMBER: L23-06799

CASE NAME: BANK OF AMERICA N.A. VS. DEJA HAYNES

***HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation.

The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

A proof of service was filed indicating mail service on the Defendant. However, there's no evidence to support that this is, in fact, the proper mailing address for Defendant. Defendant was never served with the Summons and Complaint in this matter, and has never filed any pleadings.

Though a stipulation between the parties was purportedly reached and filed with the court, the court does not find, by a preponderance, that the Defendant is aware of this Motion.

Disposition

Plaintiff's Motion will be continued to 5/26/26, 9am, for service on the Defendant.

Plaintiff to file order on Motion.

4. 9:00 AM CASE NUMBER: L24-06833

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. ANGEL CASTANON

*HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER
STIPULATION FILED BY PLN ON 12/30/25

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation.
The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was served via substitute service – by a registered process server - with notice of the Summons and Complaint. The proof of service of the Summons and Complaint included a declaration of diligence, where the process server indicated they spoke, at the address, to a woman identifying herself as the spouse of the Defendant, and who indicated Defendant resided at that address. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$7,686,67, plus costs, less any credits for payments received.

The Defendant made payments of \$5,466,00.

Costs are \$0.

The Stipulated Agreement was filed 2/3/25.